



CHAPTER xvii.

An Act to provide for the transfer of the undertaking of the Eton Gas Company to the Uxbridge Gas Company to extend the limits of supply of the latter Company and for other purposes. A.D. 1916.
[19th July 1916.]

WHEREAS the Uxbridge Gas Company (in this Act referred to as "the Company") were incorporated under the name of "The Uxbridge and Hillingdon Gas Consumers Company" by the Uxbridge Gas Act 1861 for the purpose of making and maintaining gasworks and supplying gas within the townships parishes precincts and places of Uxbridge Hillingdon Cowley West Drayton Hayes Harlington Gould's Green Pield Heath Colham Green Yiewsley and Uxbridge Moor in the county of Middlesex and the parish of Denham in the county of Buckingham and for other purposes: 24 Vict.
c. liii.

And whereas in addition to the public Acts to which they are subject the Company are subject to the private Acts and Provisional Orders set out in the First Schedule to this Act so far as such private Acts and Provisional Orders are not repealed or amended under the powers of which they are now supplying gas within numerous parishes in the counties of Middlesex Buckingham and Hertford:

And whereas the issued capital of the Company consists of one hundred and forty-seven thousand nine hundred and twenty-five pounds consolidated stock entitled to a standard dividend of five pounds per centum per annum subject to increase or decrease in accordance with the price for the time being charged by the Company for gas supplied by them:

And whereas the Company have borrowed the sum of three thousand pounds on mortgage of their undertaking and have

A.D. 1916. — created and issued four per centum debenture stock to the nominal amount of thirty-three thousand eight hundred and seventy-five pounds and have received in respect of such debenture stock the sum of thirty-two thousand four hundred and one pounds :

And whereas the price now charged by the Company for gas supplied by them to persons who consume the same by meter is three shillings and eightpence per thousand cubic feet :

30 Viet.
c. xlii.

And whereas the Eton Gas Company (in this Act referred to as "the Eton Company") were incorporated by the Eton Gas Act 1867 and were empowered to make and supply gas within the whole of the parish of Eton in the county of Buckingham :

And whereas the issued capital of the Eton Company now consists of the following :—

Five thousand two hundred and fifty pounds divided into three hundred and fifty "A" shares of fifteen pounds each and entitled to a maximum dividend of ten pounds per centum per annum ;

Four thousand seven hundred and fifty pounds divided into three hundred and sixteen and two-thirds "B" shares of fifteen pounds each entitled to a maximum dividend of seven pounds per centum per annum :

And whereas the Eton Company have created and issued redeemable debenture stock to the amount of one thousand seven hundred pounds bearing interest at the rate of four pounds per centum per annum but have not borrowed any sums on mortgage of their undertaking :

And whereas the Eton Company are empowered to charge for gas supplied by them to persons who consume the same by meter a maximum price of seven shillings per thousand cubic feet and the price now charged by them is four shillings and threepence per thousand cubic feet :

And whereas the Eton Company have agreed to sell their undertaking to the Company and the Company have agreed to purchase the said undertaking upon the terms herein-after set forth :

And whereas it would be to the advantage of the consumers of gas within the area supplied by the said companies respectively and it is expedient that the sale and purchase of the said undertaking should be sanctioned as by this Act provided :

And whereas the area of the parish of Eton referred to in the Eton Gas Act 1867 now comprises parishes and places other than the parish of Eton as at present constituted and it is expedient that the limits of supply of the Company be extended by including therein an area comprising the urban district of Eton and the parishes of Eton Wick and Boveney within which area the Eton Company are now supplying gas and parts of the parishes of Burnham and Dorney in the rural district of Eton all in the county of Buckingham: A.D. 1916.

And whereas the Eton Company in pursuance of the powers conferred upon them by the Eton Gas Act 1867 acquired the lands described in the Third Schedule to this Act for the purposes of their undertaking and such lands are reputed to be subject to certain lammas or other commonable rights exerciseable by the inhabitants or tenants of the manor of Eton-cum-Stockdales and Colenorton which would or might interfere with the utilisation of the said lands by the Company for the storage of gas as authorised by this Act and it is expedient that the Company be empowered to purchase and acquire all lammas and other commonable rights now existing in respect of the said lands:

And whereas it is expedient that such further provisions be made with respect to the Company and their undertaking as are in this Act contained:

And whereas a plan of the lands subject or reputed to be subject to lammas or other commonable rights and a book of reference to such plan containing the names of the owners or reputed owners lessees or reputed lessees and occupiers of such lands have been deposited with the clerk of the peace for the county of Buckingham and are in this Act respectively referred to as the deposited plan and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the Uxbridge Gas Act 1916 and this Act and the Acts and Orders set out in the First

Short and
collective
titles.

A.D. 1916. — Schedule to this Act may be cited together as the Uxbridge Gas Acts and Orders 1861 to 1916.

Incorporation of Acts. 2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable for the purposes of this Act) hereby incorporated with and form part of this Act (that is to say):—

(1) The Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) Provided that section 13 of that Act shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers” were added at the end of that section Provided also that section 35 of that Act shall be read and construed as if the words from “in case the whole” down to the words “have been paid” all inclusive were omitted therefrom and as though the expression “the prescribed rate” included the standard rate of dividend or such rate as reduced or increased in accordance with the provisions of the Uxbridge Gas Act 1906 together with any sum which under the provisions of the Uxbridge Gas Order 1914 may be carried to the special purposes fund:

(2) The Gasworks Clauses Act 1871:

(3) The clauses and provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The borrowing of money by the Company on mortgage or bond;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices;

The recovery of damages not specially provided for and penalties; and

The provision to be made for affording access to the special Act by all parties interested:

(4) Part III. (relating to debenture stock) of the Companies A.D. 1916.
 Clauses Act 1863 as amended by subsequent Acts: —

(5) The Lands Clauses Acts except sections 16 17 and 127
 of the Lands Clauses Consolidation Act 1845.

3. In this Act the several words and expressions to which Interpretation.
 meanings are assigned by the Acts wholly or partially incorporated
 herewith shall have the same respective meanings unless there
 be something in the subject or context repugnant to such con-
 struction And in this Act unless the subject or context otherwise
 requires—

“The Company” means the Uxbridge Gas Company;

“The Eton Company” means the Eton Gas Company;

“The Eton Undertaking” includes subject to the provisions
 of this Act all rights of making distributing and
 supplying gas and all other the rights powers autho-
 rities and privileges whatsoever of the Eton Company
 and all property assets and effects whatsoever and
 wheresoever and whether real or personal including
 cash balances reserve depreciation and replacement funds
 investments and all other interests and rights in to
 and out of the property whether real or personal and
 obligations and things in action of or belonging to the
 Eton Company upon or immediately before the date of
 transfer herein-after specified and all books accounts
 deeds writings and documents relating thereto except
 any agreements entered into or to be entered into
 between the Eton Company and the Company relating
 to the transfer to the Company of the Eton Under-
 taking and any letters and documents relative to the
 enforcing of any such agreements by the Eton Company
 but subject to all contracts debts liabilities and obliga-
 tions of the Eton Company which shall be subsisting
 on the said date;

“The date of transfer” means the first day of July one
 thousand nine hundred and sixteen;

The expression “limits of supply” means in relation to the
 Company the area within which the Company are for
 the time being authorised to supply gas;

“The undertaking” and “the gas undertaking” mean the
 undertaking of the Company for the supply of gas as
 authorised by this Act and the Acts and Orders set
 out in the First Schedule to this Act.

A.D. 1916.

LANDS AND EXTENSION OF LIMITS.

Extension of
limits of
supply.

39 Vict.
c. xxxii.

4. From and after the passing of this Act the limits of supply shall be extended so as to include the urban district of Eton (except so much thereof as is within the limits of supply of the Slough Gas and Coke Company) and the following parishes and parts of parishes in the rural district of Eton all in the county of Buckingham (that is to say) The parishes of Eton Wick and Boveney so much of the parish of Burnham as lies within half a mile in a northerly direction from the centre of the public road leading from Eton Wick to Dorney and that part of the parish of Dorney which does not form part of the limits of the Maidenhead Gas Company as defined by the Maidenhead Gas Act 1876 except the detached part of the said parish and subject to the provisions of this Act the Company shall have and may exercise within the limits of supply as extended all and the like powers rights privileges and authorities for and in relation to the supply of gas and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have may exercise and are subject to within the limits of supply as existing immediately before the passing of this Act Provided that the Company may charge for gas supplied within the added limits of supply for a period of five years after the date of transfer a sum of sixpence and thereafter a sum of fourpence per one thousand cubic feet in excess of the sum from time to time charged by them for gas supplied within the limits of supply as existing immediately before the passing of this Act but any sum so charged in excess shall not be taken into account in calculating the rate of dividend payable under section 41 (Sliding scale) of the Uxbridge Gas Act 1906.

Company
may lay
connecting
mains.

5. The Company may for the purpose of conveying gas from one portion of the limits of supply to another portion thereof lay down maintain repair and renew a main or mains (A) In the parish of Langley Marish along the road leading from Market Lane Iver past Langley Place and St. Bernard's Convent to Slough (B) In the urban district of Slough along High Street from the boundary of the parish of Langley Marish as far as Datchet Road and along Datchet Road to the boundary of the parish of Datchet (c) In the parish of Datchet and the urban district of Eton along the public footpath leading from Slough Road to Datchet Lane to the boundary of the urban district of

Eton and (D) In the urban district of Eton along Datchet Lane to the road leading from Eton to Slough to the boundary of the limits of supply of the Company and the provisions of this Act and of the Acts and Orders set out in the First Schedule to this Act with respect to the breaking up of streets by the Company shall apply to the laying down maintaining repairing and renewing of the said main or mains Provided that such main or mains shall not be used for the supply of gas to consumers within the limits of supply of the Slough Gas and Coke Company without the consent in writing of that company Provided further that any main laid under this section which would interfere with or affect any main or pipe of the Slough Gas and Coke Company shall be laid under the superintendence if the same be given and to the reasonable satisfaction of the engineer of that company Provided also that nothing contained in this section shall authorise the Company to lay down any main in Datchet Road in the urban district of Slough between Upton Court Road and the public footpath leading to Eton without the consent in writing of the Slough Urban District Council and the Company shall not in any case lay down any main between the said points if they are able to procure the grant of an easement for the construction and maintenance of a main to connect the mains along the routes (A) and (C) above described by another route.

A.D. 1916.

6. The Company may upon the lands described in the Third Schedule to this Act construct make maintain alter enlarge and use or discontinue gasholders and other works for the storage of gas and may store gas upon such lands accordingly.

Power to store gas.

7. The Company may purchase and acquire compulsorily or by agreement all lammas and other commonable rights now exerciseable over and in respect of or in any way affecting the lands delineated upon the deposited plan and described in the deposited book of reference and in the Third Schedule to this Act.

Power to acquire lammas and other rights.

8. The powers of the Company for the compulsory purchase and acquisition of the lammas and other commonable rights referred to in the last preceding section of this Act shall not be exercised after the expiration of three years from the passing of this Act.

Period for compulsory acquisition of lammas and other rights.

9. All lammas rights and other rights of a similar nature exerciseable over and in respect of or in any way affecting the

As to lammas rights.

A.D. 1916. — lands delineated upon the deposited plan and described in the deposited book of reference and in the Third Schedule to this Act shall be deemed to be commonable rights within the meaning of the Lands Clauses Acts.

For protection of Eton College.

10. For the protection of the Provost and College of Eton (in this section called "the college") the following provision shall unless otherwise agreed between the college and the Company apply and have effect (that is to say):—

No building (other than gasholders or other works or buildings for use in connexion with a gasworks undertaking) shall be erected on the lands described in the Third Schedule to this Act or on any part of such lands unless the consent in writing of the college is first obtained.

ACQUISITION OF UNDERTAKING OF THE ETON COMPANY.

Transfer to Company of Eton Undertaking and dissolution of Eton Company.

11.—(1) As on and from the date of transfer the Eton Undertaking shall by virtue of this Act be transferred to and vested in the Company upon and subject to the terms and conditions contained in this Act.

(2) As on and from the date of transfer the Eton Undertaking shall form part of the undertaking of the Company and the Eton Company shall be and is hereby dissolved.

Company to issue preference stock in substitution for shares of Eton Company.

12.—(1) As soon as reasonably practicable after the date of transfer the Company shall subject to and in accordance with the provisions of this Act issue to those persons who immediately before that date held ordinary shares of the Eton Company preference stock of the Company to be created as herein-after provided as follows (that is to say):—

To each such holder of "A" shares of the Eton Company for each such share held by him the sum of thirty pounds of such preference stock of the Company;

To each such holder of "B" shares of the Eton Company for each such share held by him the sum of twenty-one pounds of preference stock of the Company.

(2) The preference stock of the Company to be issued under the provisions of this section shall be entitled to a preferential dividend of five pounds per centum per annum and the provisions of section 14 of the Companies Clauses Act 1863 shall

apply to such preference stock as though that section were incorporated with this Act. A.D. 1916.

(3) The provisions of section 15 (Stock to be transferable in multiples of one pound) of the Uxbridge Gas Act 1906 and of section 11 (Restrictions as to votes in respect of preferential shares or stock) of the Uxbridge Gas Order 1914 shall apply to and in respect of the preference stock so to be issued as aforesaid.

13. All moneys due by the Eton Company at the date of transfer on mortgage of the Eton Undertaking including moneys raised by the issue of redeemable debenture stock shall as from that date become and be charged upon the undertaking of the Company as if such mortgages and debenture stock had been granted and issued by the Company on the dates on which the same were respectively granted and issued by the Eton Company and the interest on moneys so due shall rank in all respects save as to the rate of such interest *pari passu* with the interest on all mortgages and debenture stock of the Company issued or to be issued under the provisions of the Acts relating to their undertaking. As to mortgage debts of Eton Company.

14.—(1) On the date of transfer there shall be created by virtue of this Act and without any other requisite (in addition to the capital which the Company are authorised to raise under the Acts and Orders set out in the First Schedule to this Act) such a nominal amount of preference stock of the Company entitled to a dividend of five pounds per centum per annum as shall be requisite to give effect to the provisions of this Act with respect to the transfer of the Eton Undertaking. Creation of stock for purposes of transfer.

(2) The amounts of preference stock of the Company to which the holders of shares of the Eton Company become entitled by virtue of this Act shall be vested in such holders as on and from the date of transfer and such holders shall be registered in the books of the Company forthwith after the date of transfer as the holders of such amounts respectively.

(3) The preference stock of the Company to be created as aforesaid shall rank for dividend or interest as from the first day of July one thousand nine hundred and sixteen and as from that date the shares of the Eton Company shall cease to bear any dividend.

15. The preference stock of the Company of which the holders of shares of the Eton Company are pursuant to the Stock of Company to be equivalent

A.D. 1916.
to shares of
Eton Com-
pany.

provisions of this Act registered as the holders shall after registration thereof be held in the same rights on the same trusts and subject (so far as is consistent with such provisions) to the same powers provisions charges and liabilities as those in upon or to which the shares of the Eton Company for which such preference stock of the Company is substituted were held or were subject immediately before the date of transfer and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such shares of the Eton Company and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any shares of the Eton Company are hereby expressly authorised and required to accept any preference stock of the Company of which they are pursuant to the provisions of this Act registered as the holders and to hold dispose of or otherwise deal with such preference stock in all respects as they might have held disposed of or otherwise dealt with the shares of the Eton Company for which the same is substituted and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act.

Exchange of
certificates.

16. The Company shall call in the certificates for shares of the Eton Company for which preference stock of the Company is substituted under the provisions of this Act and shall issue free of charge in exchange for those certificates to the respective holders of the shares of the Eton Company represented thereby certificates for preference stock of the Company of the respective amounts to which those holders are by virtue of this Act entitled but no holder of shares of the Eton Company shall be entitled to a new certificate as aforesaid until he shall have delivered up to the Company to be cancelled the existing certificate for which such certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction of such certificate and shall have given to the Company an indemnity against any and every claim in respect of such lost or destroyed certificate or the share or shares represented thereby :

Provided that until the issue of such new certificates the holders of the existing certificates for shares of the Eton Company shall (according to the amounts of preference stock of the Company to be issued under the provisions of this Act in substitution for the shares of the Eton Company which they

respectively represent) have and possess the same rights and privileges as if such existing certificates were certificates for those respective amounts of preference stock of the Company but if any such holder neglect or omit to send or deliver to the Company his certificate or certificates for shares of the Eton Company for the period of one year after notice in writing sent by post to the address of such holder appearing in the books of the Eton Company the Company may suspend the payment of any dividends or interest declared or becoming payable upon or in respect of the preference stock of the Company so held by him until such certificate or certificates is or are delivered up to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed and until such indemnity as aforesaid shall have been given.

A.D. 1916.

17. All transfers or other dispositions of any shares of the Eton Company made but not registered prior to the issue by the Company to the holder of such shares of the certificate or certificates for the preference stock of the Company to which such holder is entitled under the provisions of this Act shall notwithstanding the provisions of this Act be valid and have due effect given to them respectively as transfers or dispositions of the amounts of preference stock of the Company which represent the shares of the Eton Company thereby expressed to be transferred or disposed of and which are substituted for the same by this Act although the instrument of transfer or disposition shall describe the same as shares of the Eton Company and the Company shall accordingly register the stock in the name of the transferee or person taking under the disposition and any bequest of or any covenant or provision of any deed or instrument which ought in the circumstances to apply to the shares of the Eton Company so transferred or disposed of as aforesaid shall be held to apply to an amount of preference stock of the Company equal to that which is under the provisions of this Act substituted for such share or shares of the Eton Company.

Transfers of
shares of
Eton Com-
pany to oper-
ate as trans-
fers of stock
of Company.

18.—(1) The Company shall on the date on which they shall pay the dividend on their existing consolidated ordinary stock for the half-year ending the thirtieth day of June one thousand nine hundred and sixteen pay to the persons who at the date of transfer held shares of the Eton Company out of the divisible profits of the Eton Company available for the purpose a half-yearly dividend at such rate as such divisible profits shall admit of not exceeding ten pounds per centum

As to divi-
dend on
shares of
Eton Com-
pany to
30th June
1916.

A.D. 1916. per annum on the "A" shares and seven pounds per centum per annum on the "B" shares of the Eton Company subject in each case to deduction of income tax.

(2) Provided that the said dividends shall not be paid by the Company if the Eton Company shall before the date of transfer have paid a dividend in respect of such half-year.

(3) Separate accounts of the Eton Company shall be made out for the said half-year and be audited by the auditors of the Eton Company in the same manner as they would have been audited if this Act had not been passed but as on and from the first day of July one thousand nine hundred and sixteen the accounts of the Eton Company shall be incorporated in and dealt with as part of the accounts of the Company.

Eton Company's books to be evidence as to holders of shares.

19.—(1) The several persons who immediately before the date of transfer appear on the registers of the Eton Company to be holders of shares of the Eton Company or their respective executors administrators or assigns of such persons shall for the purposes of this Act and subject to the provisions of the section of this Act of which the marginal note is "Transfers of shares of Eton Company to operate as transfers of stock of Company" be deemed to be holders of shares of the Eton Company and the secretary of the Eton Company shall on the date of transfer deliver to the Company at the principal office of the Company the said registers and on and after the date of transfer the registers of transfers of shares of the Eton Company shall be permanently closed and (except as provided by the last-mentioned section of this Act) no transfer of any shares of the Eton Company made on or after that date shall as between the Company and the party claiming thereunder be of any effect.

(2) The issue by the Company of certificates for preference stock of the Company as aforesaid to the persons whose names appear by the said registers to be registered holders of shares of the Eton Company or the respective executors or administrators of such persons or to the persons entitled thereto pursuant to the section of this Act of which the marginal note is "Transfers of shares of Eton Company to operate as transfers of stock of Company" shall be a sufficient discharge to the Company for all purposes.

Partial repeal of Eton Gas Act 1867.

20.—(1) As from the date of transfer the Eton Gas Act 1867 shall be and the same is hereby repealed save and except the provisions thereof set forth in the Second Schedule to this Act.

(2) The provisions of the Eton Gas Act 1867 which are set forth in the Second Schedule to this Act shall continue in force and the Company may exercise the powers thereby conferred in all respects as if the Company had been therein referred to instead of the Eton Company. Provided that notwithstanding anything in the said provisions with respect to the limits within which the Eton Company may supply gas the Company shall be entitled to supply in any part of the limits of supply any gas manufactured by them under or by virtue of the powers conferred by the said provisions. A.D. 1916.
—

21. If at the date of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing by or against or in favour of the Eton Company the same shall not abate or be discontinued or be in anywise prejudicially affected by reason of the transfer to the Company of the Eton Undertaking or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the Company as and when it might have been continued prosecuted and enforced by against or in favour of the Eton Company if this Act had not been passed but not further or otherwise. Pending
actions.

22. All agreements contracts conveyances deeds and other instruments affecting the Eton Company and in force at the date of transfer shall (subject as herein-after provided) as from such date be as binding and of as full force and effect against or in favour of the Company (as the case may be) and may be enforced as fully and effectually as if instead of the Eton Company the Company had been a party thereto or bound thereby or entitled to the benefit thereof: Contracts to
be binding.

Provided that no contract or agreement (unless entered into in the ordinary course of the maintenance of the Eton Undertaking) and no conveyance deed or other instrument made or entered into by the Eton Company after the eighteenth day of November one thousand nine hundred and fifteen and extending beyond the date of transfer shall be binding on or of any force or effect against or in favour of the Company unless made or entered into with the consent in writing of the Company.

23. All rents rates and charges and other sums and debts at the date of transfer due and payable or accruing due and payable to the Eton Company shall be payable to and may be collected recovered and enforced by the Company in the same Collection of
outstanding
debts.

A.D. 1916. manner and with and by the same benefits and processes as those with and by which the Eton Company might have enforced the same and shall belong to the Company for their own benefit.

Books &c.
to remain
evidence.

24. All books and documents which if this Act had not been passed would have been evidence in respect of any matter for or against the Eton Company shall be admitted in evidence in respect of the same or the like matter for or against the Company.

Officers of
Eton Com-
pany to be
accountable
for books &c.

25. All officers and persons who at the date of transfer have in their possession or under their control any books documents papers moneys or effects forming part of the Eton Undertaking shall be liable to account for and deliver up the same to the Company or to such persons as the Company may appoint to receive the same and subject to the same consequences on refusal or neglect as if such officers or persons had been appointed by and become possessed of such books documents papers moneys and effects for the Company.

Compensa-
tion to direc-
tors of Eton
Company.

26. The Company shall within one month after the date of transfer pay to each of the directors of the Eton Company holding office on the eighteenth day of November one thousand nine hundred and fifteen and in office at the date of transfer the sum of two hundred and ten pounds by way of compensation for loss of fees.

As to reserve
and deprecia-
tion funds of
Eton Com-
pany.

27. As from the date of transfer the reserve fund of the Eton Company shall be added to and form part of the reserve fund of the Company and the depreciation fund of the Eton Company shall be treated as if it were capital not entitled to dividend and shall be used for the extension and improvement of the undertaking.

BORROWING POWERS AND FINANCIAL PROVISIONS.

Power to
borrow.

28. Notwithstanding anything contained in any Act or Order relating to the undertaking the Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the capital for the time being of the Company which at the time of borrowing has been raised under the powers of this Act or any other Act or Order relating to the undertaking but no sum shall be borrowed until the Company

have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the shares or stock at the time issued together with the premiums (if any) realised on the sale thereof shall have been fully paid up. A.D. 1916.

29. The provisions of sections 27 (Debenture stock) 28 (Priority of mortgages and debenture stock over other debts) and 31 (Application of moneys) of the Uxbridge Gas Act 1906 shall with any necessary modifications extend and apply to the exercise of the powers of borrowing on mortgage of the undertaking in this Act contained as if the same were re-enacted in this Act. Application of financial provisions of Uxbridge Gas Act 1906.

30. Section 17 (Limit of interest on money borrowed) of the Uxbridge Gas Order 1914 shall be read and have effect as if the words "six pounds" had been inserted therein instead of the words "five pounds". Repeal of limit of interest.

31. From and after the date of the passing of this Act section 37 (Application of excess of profits over authorised rate of dividend) of the Act of 1906 shall be read as if the words "the dividend on the preference stock of the Company and" were inserted in such section after the words "to pay." Dividends on preference capital.

32. The Company may apply to all or any of the purposes of this Act to which capital is properly applicable any money from time to time raised by them under the Acts and Orders set out in the First Schedule to this Act: Power to apply funds.

Provided that capital raised under such Acts and Orders shall not during the continuance of the present war and for twelve months thereafter be applied to purposes to which it is not applicable at the passing of this Act unless the consent of the Treasury has been previously obtained.

33. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any half-yearly dividend under the provisions of section 42 (Declaration by directors of half-yearly dividends) of the Uxbridge Gas Act 1906 and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating within the limits of supply and any transfer made during the time when the transfer books are so closed shall as between the Company and the Closing of transfer books previous to declaring half-yearly dividend.

A.D. 1916. — person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Joint holders
of stock.

34. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock any one of those persons may vote at any meeting either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any shares or stock stand shall for the purposes of this section be deemed joint holders thereof.

Restriction
on raising
money
during pre-
sent war.

35. Notwithstanding anything in this Act the Company shall not under the powers of this Act raise or borrow any money except for the payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act" during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

SUPPLY OF GAS.

As to mode
of cutting off
supplies.

36.—(1) In any case in which the Company are by virtue of any enactment relating to their undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall reconnect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847:

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company shall (subject to the conditions specified in section 22 of the Gasworks

Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section. A.D. 1916.

37. In any case in which in consequence of any default on the part of the occupier of any premises the Company shall have cut off the supply of gas to such premises (whether under the existing powers of the Company or under the powers conferred by this Act) and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of reconnecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Occupier to pay expenses of reconnecting disconnected supply.

38. Notwithstanding anything contained in any enactment to the contrary the Company shall not be obliged to give from any main a supply of gas for any purpose other than lighting or domestic use in any case where the capacity of such main is insufficient for such purpose or if and so long as any such supply would in the opinion of the Company interfere with the sufficiency of the gas required to be supplied by means of such main for lighting purposes.

Amending obligations as to supply of gas.

39. Notwithstanding anything contained in this or any other Act or Order relating to the Company the price to be charged by the Company for a supply of gas may vary according to the purposes for which the gas is supplied as may be agreed upon between the Company and the person taking such supply. Provided that the Company shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for the same purpose under like circumstances.

Power to vary price according to purpose for which gas is supplied.

40. The Company may enter into and fulfil any contract or arrangement with any county urban rural or local authority having powers within any part of the limits of supply for the supply of gas by the Company for public purposes for any period not exceeding under any one such contract or arrangement seven years :

Contracts for supplying gas for public purposes.

Provided that such supply shall not be given for use beyond the limits of supply except with the consent of any company or person supplying gas under parliamentary authority within the area within which the supply is to be used and nothing in this section shall authorise the Company to lay mains or other pipes beyond the limits of supply.

A.D. 1916.

MISCELLANEOUS.

As to ap-
pointment of
managing
director.

41.—(1) The directors may appoint any one of their body to be a managing director of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him from office and appoint another in his place.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of these modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

Authentica-
tion and
service of
notices.

42. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised in writing by the directors thereof being affixed thereto in writing or in print or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or gas fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Recovery of
penalties &c.

43. Save as otherwise by this Act expressly provided all offences against this Act and the Acts and Orders set out in

the First Schedule to this Act and all penalties forfeitures costs and expenses imposed or recoverable under the said Acts or Orders or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. A.D. 1916.

44. Proceedings for the recovery of any demand made under the authority of this Act or the Acts and Orders set out in the First Schedule to this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

45. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament. Saving as to general Acts.

46.—(1) Before commencing to store gas on the land described in the Third Schedule to this Act the Company shall to the satisfaction of the Commissioners of Works plant and at all times maintain and when necessary replant and renew a continuous belt of poplar trees or other trees approved by the said Commissioners along or near the south-easterly boundary of the said land for the purpose of providing a screen to render the gasholders and other works of the Company on the said land as inconspicuous as possible No gasholder or other works for the storage of gas to be erected on the said land shall at any time hereafter exceed forty feet in height above the surface of the ground. For protection of Windsor Castle.

(2) No building exceeding as regards any part thereof the height of fifty feet shall be erected on the said lands or any part thereof unless—

(A) The consent of the said Commissioners is first obtained; and

(B) Such building is erected in accordance with plans showing the elevations thereof submitted before the erection thereof to the said Commissioners for approval and approved by them or by a referee as provided by the next subsection.

A.D. 1916.
—

(3) If the said Commissioners shall have given their consent to the erection of any such building as aforesaid but shall not approve the plans thereof submitted to them as aforesaid within one month after such submission such plans shall be referred for approval to the President of the Royal Institute of British Architects or an architect to be nominated by him. The referee on any such reference shall hear the objections of the said Commissioners to the submitted plans and the costs of the said Commissioners of the reference and incidental thereto and the charges of the referee shall be paid by the Company.

(4) No buildings erected on the said lands or any part thereof (whether the same or any part thereof shall or shall not exceed the said height of fifty feet) shall be used for any manufacture or for works not by this Act expressly authorised which in the opinion of the said Commissioners shall be or be likely to become noisy or offensive or otherwise prejudicial to the amenities of Windsor Castle.

(5) Every sale demise letting disposition or other dealing of or with the said lands or any part thereof or any buildings thereon shall unless the said Commissioners otherwise agree be made subject to the provisions and restrictions contained in this section and the deed or other instrument effectuating such sale demise letting disposition or other dealing shall contain such covenants provisions and conditions as may be necessary to secure the performance and observance of the provisions and restrictions to which the same shall so be made subject.

Crown
rights.

47. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

48. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULES referred to in the foregoing Act. A.D. 1916.

FIRST SCHEDULE.

The Uxbridge Gas Act 1861 (24 Vict. c. liii.).

The Uxbridge Gas Act 1873 (36 & 37 Vict. c. cxlii.).

The Uxbridge Gas Act 1906 (6 Edw. 7. c. lxxx.).

The Uxbridge Gas Order 1911 confirmed by the Gas Orders Confirmation (No. 4) Act 1911 (1 & 2 Geo. 5. c. clxix.).

The Uxbridge Gas Order 1914 confirmed by the Gas and Water Orders Confirmation (No. 2) Act 1914 (4 & 5 Geo. 5. c. cxiii.).

SECOND SCHEDULE.

PROVISIONS OF THE ETON GAS ACT 1867 (30 VICT. C. xlii.) SAVED FROM REPEAL.

Company empowered to maintain Gasworks &c.

50. Subject to the provisions in this Act and the said incorporated Acts contained, it shall be lawful for the Company from Time to Time to maintain their existing Gasworks, and to make, construct, lay down, maintain, alter, or discontinue such other Retorts, Gasometers, Receivers, Drains, Sewers, Machinery, and other Works and Apparatus, and also such Houses and Buildings, and approaches thereto, upon the Land comprised in the Schedule to this Act, as the Company shall from Time to Time think fit, and to do all such other Acts in reference to their Gasworks and Undertaking for the Time being as they shall think proper, consistently with the Provisions of this Act, for supplying Gas within the Limits of this Act, and for other Purposes authorized by this Act: Provided always, that it shall not be lawful for the Company to erect on any Land to be acquired by them under the Powers of this Act (except on the said Lands described in the Schedule to this Act) any Works for the Manufacture or storing of Gas.

The Schedule referred to in this Act.

Description and Limits of Land now leased to the Company and used for their existing Gasworks, and the approach thereto, and List of Works now belonging to the Company.

A Piece of Land situate in the Parish of Eton which abuts towards the North on Colenorton Brook, towards the East on a Close

A.D. 1916. of Land called the Timberhalls, now or late in the occupation of Frederick King Copeland, towards the South partly on the Road leading to the Common Lane, and partly on a Slip of Land belonging to Eton College used as a Footpath, and leading into the said Close of Land called the Timberhalls.

The existing Gasworks consist of the Foreman's House and Garden, Counting House, Retort House and Purifying House, Gasholder, Coal Stores, and adjoining Ground, and other usual Gas Plant and Conveniences.

Various Mains, Pipes, and other Apparatus in and under the Streets, Roads, and Places within the Parish of Eton now supplied with Gas by the Company.

THIRD SCHEDULE.

LANDS FOR THE STORAGE OF GAS.

A piece of land in the parish of Eton Wick in the rural district of Eton containing two acres and one rood or thereabouts bounded on the north-west for a distance of one hundred and thirty-nine yards or thereabouts by the Windsor Branch of the Great Western Railway on the west in two lines (measuring sixty-two yards and fifty-four yards or thereabouts respectively in length) by the north-eastern and south-eastern boundaries of land belonging to the Eton Urban District Council used as sewage works on the south by the occupation road leading under the said railway to Eton Cottage on the south-east by an imaginary line drawn approximately parallel to the said railway from a point on the northern side of the said occupation road sixty-seven yards or thereabouts east of the said railway for a distance of one hundred and ninety-one yards or thereabouts to a point sixty-six yards or thereabouts in a south-easterly direction from a point on the said railway two hundred and three yards or thereabouts from the northern side of the said occupation road and on the north-east by an imaginary line drawn for a distance of sixty-six yards or thereabouts between the two points last mentioned.

Printed by EYRE and SPOTTISWOODE, LIMITED,
FOR

FREDERICK ATTERBURY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

To be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LIMITED, 29, BREAMS BUILDINGS FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LIMITED, 116, GRAFTON STREET, DUBLIN.
or from the Agencies in the British Colonies and Dependencies,
the United States of America and other Foreign Countries of
T. FISHER UNWIN, LIMITED, LONDON, W.C.